



U.S. Department
of Transportation

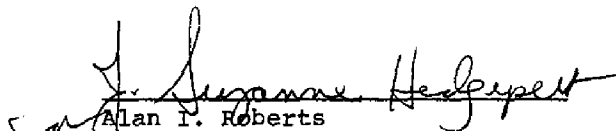
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8870 (EXTENSION)
SECOND REVISION June 18, 1985

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8870 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to October 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 29 1991

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

EM Science
Cincinnati, OH

September 26, 1991

Hach Company
Ames, IA

October 17, 1991



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

**DOT-E 8870
(SECOND REVISION)**

1. Hach Chemical Company, Ames, Iowa is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of certain hazardous materials for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of small amounts of various hazardous materials specified in paragraph 3 below in the same package. The class of the package to be based on the most hazardous component in the package in the order specified in 173.2 and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Everpure, Inc., Westmont, IL. - PTE-1.
Culligan International Company, Northbrook, Ill. - PTE-2.
EM Science, Cincinnati, OH - PTE-3.

2. BASIS. This exemption is based on Hach Chemical Company's application dated June 7, 1984, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application(s) submitted in accordance with 49 CFR 107.111 and 107.103 and the public proceeding thereon:

Everpure, Inc.'s application dated June 19, 1984.
Culligan International Co.'s application dated March 16, 1984.
EM Science's application dated January 18, 1985.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquid or solid materials prescribed in 49 CFR 172.101 which are authorized for transportation in passenger-carrying aircraft; classed as flammable liquid, oxidizer, organic peroxide, flammable solid, corrosive material, poison B, ORM-A, or ORM-B, respectively.

4. PROPER SHIPPING NAME (49 CFR 172.101). Chemical Kit.

5. REGULATION AFFECTED. 49 CFR 172.101, 173.286, 175.3.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, passenger-carrying aircraft, cargo-only aircraft, and cargo vessel.

7. SAFETY CONTROL MEASURES. Packagings prescribed are as follows:

(1) Inner receptacles must be glass, plastic, or metal which are compatible with the lading. The capacity of the receptacles must not exceed 8 fluid ounces for liquid or one half pound for solid. The receptacles must not be liquid full at 130°F.

(2) Inner receptacles must be securely closed and placed in an intermediate container made of plastic or fiberboard. Sufficient cushioning material must be used to prevent movement of the inner receptacles within the intermediate container and to absorb the entire liquid content in case of a breakage. Only materials that are compatible and will not react dangerously with each other are permitted to be placed in the intermediate container. The intermediate container must be securely closed.

(3) The completed intermediate package must be overpacked in an outside fiberboard box of at least 200 lb test and double faced fiberboard. The maximum total quantity of hazardous materials in each outside box may not exceed one quart for liquid or one pound for solid. The outside box must be securely closed.

(4) The completed package must be capable of withstanding 4 foot drop test onto a rigid surface in the position most likely to cause damage.

8. SPECIAL PROVISIONS.

a. The packaged chemical kit must be classed according to the most hazardous component in the kit in the order specified in 49 CFR 173.2.

b. The package must bear labels required for the components in the kit.

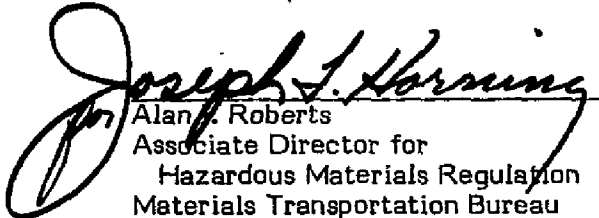
c. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

d. A copy of this exemption must be carried aboard each aircraft and cargo vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. April 30, 1986.

Issued at Washington, D.C.:


Alan J. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FAA, FHWA, FRA, USCG